

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600295	GONSAL VS WEIDNER PROPERTY MANAGEMENT LLC, A WASHINGTON LIMITED LIABILITY COMPANY	DEMURRER MOTION TO STRIKE

Tentative Ruling:

On August 24, 2026, the court continued the hearing and ordered the parties to meet and confer. The Court also ordered Defendants to file a meet and confer declaration 10 days before the hearing date, or by August 31, 2026 (or vacate the hearing on the demurrer and motion to strike). As of September 3, 2026, there is no joint declaration filed.

The court: (1) denies Defendants' requests for judicial notice in full, (2) overrules Defendants' demurrer, (3) denies Defendants' motion to strike, and (4) orders Defendants to file an Answer within 10 days of this ruling.

Additionally, the court sets an OSC re: sanctions not to exceed \$1,500 on Defendants' counsel Stephen B. Heath for failure to comply with the court's order to file a timely meet and confer declaration pursuant to the court's August 24, 2026 order. This OSC is set for September 30, 2026, at 8:30 a.m.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600449	ALCARZAR VS SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met. The parties were unable to reach an agreement to resolve the demurrer, but District withdrew its motion to strike.

1st Cause of Action: Failure to Perform Mandatory Duty to Protect

The FAC alleges District is liable for Plaintiff's injuries under three theories: (1) direct liability for breach of a mandatory duty under Government Code section 815.6; (2) vicarious liability for the acts or omissions of its employees under Government Code section 815.2; and (3) negligent supervision based on a special relationship with Plaintiff. District argues Plaintiff fails to plead any of these theories of liability.

In opposition, Plaintiff clarifies this claim does not rest exclusively on direct liability because District is vicariously liable. Plaintiff maintains the FAC meets the pleading standard for negligent supervision as well.

Vicarious Liability

Under the California Tort claims Act, Government Code section 810 *et seq.*, a public entity is not liable for injury arising from an act or omission except as provided by statute. (*Hoff v. Vacaville Unified School District* (1998) 19 Cal.4th 925, 932 [internal quotation omitted].)

“As a general rule, one owes no duty to control the conduct of another, not to warn those endangered by such conduct. Such a duty may arise, however, if a special relation exists. (*Thompson v. County of Alameda* (1980) 27 Cal.3d 741,751-752.) “A special relationship is formed between a school district and its students resulting in the imposition of an affirmative duty on the school district to take all reasonable steps to protect its students.” (*M.W. v. Panama Buena Vista Union School Dist.* (2003) 110 Cal.App.4th 508, 517.) School authorities have a duty to supervise the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. (*Id.*) “The school district is liable for injuries which result from a failure of its officers and employees to use ordinary care in this respect.” (*Id.*)

Applying *M.W.*, District is directly liable for a violation of its mandatory duties based on the special relationship to Plaintiff. Alternatively, Plaintiff may properly assert that a public entity may be held vicariously liable for torts committed by its employees within the scope of their employment under Government Code section 815.2, subdivision (a), without needing to identify an independent statutory basis for the tort claim. (See Gov. Code, § 815.2.) In other words, if a public employee commits a tort in the course of employment, and that tort would subject the employee to liability under general tort principles, then the public entity is vicariously liable under section 815.2, even if no statute specifically authorizes the claim against the public entity.

The FAC alleges the District, based on its special relationship with Plaintiff as its student, had an affirmative duty to take all reasonable steps to protect its students. (FAC ¶7.) The FAC lists a number of anti-bullying statutes and regulations in the Education Code that impose a duty on the District to prevent bullying, including Education Code section 234.1. (*Id.* at ¶8.) “District is liable for its failure to supervise and its negligent failure to maintain, inspect and manage the school premises, including those emanating from an assault or battery or bullying committed by another student.” (*Id.* at ¶8.) Plaintiff alleges she was on campus as a student under the direct supervision of the District through its employees when Bully assaulted Plaintiff. (*Id.* at ¶9.) It is alleged District was put on notice the day before the assault that threats were made against Plaintiff because Plaintiff and her mother reported the threat to District. (*Id.* at ¶9.) District in fact demonstrate notice because District required Plaintiff to sign a “no contact” contract. (*Ibid.*) However, District negligently failed to take adequate steps to

protect her from the assault and bullying. (*Id.* at ¶¶9-10.) Such negligence caused Plaintiff's injuries. (*Id.* at ¶¶9-11.)

Education Code section 234.1, cited in the FAC, requires California public schools to implement policies that prohibit bullying. (Educ. Code, § 234.1, subd. (b)(1) ["A requirement that, if school personnel witness an act of discrimination, harassment, intimidation, or bullying, they **shall** take immediate steps to intervene when safe to do so."], emphasis added.) The student who assaulted Plaintiff is sued as one of Does 30 through 50, referred to as "Bullies" pursuant to the definition of "bullies" or "bullying" set forth in Education Code section 48900. (FAC ¶9; Educ. Code, § 48900, subd. (r).) Although the FAC does not identify the District employee(s) who acted or failed to act, it is not necessary to plead the identity of each government employee at the pleading stage. (*C.A. v. William S. Hart Union High School* (2012) 53 Cal.4th 861, 872.)

Negligent Supervision

An employer can be held liable for the negligent hiring, supervising or retention of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038.) The direct liability of an employer for negligent hiring, supervision and training is distinct from the vicarious liability for the negligence of a public employee under Government Code section 815.2. and is generally improperly asserted against a public entity without a statutory basis. (*De Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 252.)

However, claims against school districts based on their direct negligence in hiring and supervising teachers may be pursued. (*C.A. v. William S. Hart Union High School* (2012) 53 Cal.4th 861, 872.) This is because "a school district and its employees have a special relationship with the district's pupils, a relationship arising from the mandatory character of school attendance and the comprehensive control over students exercised by school personnel, analogous in many ways to the relationship between parents and their children." (*Id.* at 869.) As discussed earlier, a special relationship exists between District and Plaintiff. (FAC ¶7.)

To support a claim for Negligent Supervision, Retention, and Hiring, Plaintiff must allege that: (1) District hired a particular employee; (2) that employee was or became unfit or incompetent to perform his or her work; (3) District knew or should have known that the employee's unfitness or incompetence created a particular risk of harm to others; (4) the employee's unfitness or incompetence harmed Plaintiff; and (5) District's negligence in hiring, supervising, or retaining the employee was a substantial factor in causing Plaintiff's harm. (CACI 426.)

A plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (*Z.V. v. County of Riverside* 92015) 238 Cal.App.4th 889, 902.)

Here, the FAC fails to allege that a particular employee was or became unfit or incompetent to perform work and that this unfitness or incompetence harmed Plaintiff. However, negligent supervision is one of three theories that Plaintiff advances to support a claim for violation of mandatory duty. As discussed previously, Plaintiff alleged sufficient facts under direct and vicarious liability.

A complaint withstands demurrer where it states any valid claim entitling the plaintiff to relief. If the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (*Queline Co., Inc. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39; see *Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998 [generally demurrer may be upheld “only if the complaint fails to state a cause of action under any possible legal theory].)

A demurrer will not lie as to only a portion of a cause of action. (*Pozner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682 [to be sustained, a demurrer must dispose of an entire cause of action].) on the issue of negligent supervision, even if determined in District’s favor, a demurrer on this basis is improper because Plaintiff’s other two theories of liability withstand demurrer.

Plaintiff sufficiently alleged a cause of action for negligent breach of mandatory duty.
The court overrules the demurrer.